

or only of that part of the principal which fell to the share of the tenant for life. It will be seen also from this statement, that the Court made an apportionment according to the *speculative* benefit, a course which the Court has in other cases disclaimed, except for the purpose of raising the fine *in præsentia* without prejudice to the ultimate apportionment on the death of the tenant for life, when the relative benefits derived can be ascertained. It was perhaps understood, though it does not so appear from the report, that the decree was to be without prejudice to an ultimate adjustment.

Jones v. Jones.—In *Jones v. Jones* (a), before Vice-Chancellor Wigram, involving leaseholds for *lives* as well as leaseholds for *years*, and where the fines were to be raised out of the rents or by mortgage, or by such other means as should be advisable, the mode of raising and ultimately apportioning the fines was fully considered, and the importance of the subject may justify a somewhat lengthened extract from the judgment. “The rule,” said the Vice-Chancellor, “is, that the parties are to pay in proportion to their enjoyment, by which I understand their *actual* enjoyment to be meant, and not an extent of enjoyment to be determined by mere *speculation*, or by a calculation of *probabilities*, and the question is, how that apportionment is to be effected. If the *tenant for life* is willing to *take upon himself to [*377] renew, he will enjoy the estate during his own life, and when the actual period of his enjoyment is ascertained, his estate will have a lien upon the residue of the term for any overpayment which may have been made. The case is one of much greater difficulty where the renewal is made by the *remainderman*, or (which as to this difficulty is the same thing), where the trustee is to raise the money and charge it on the *corpus*. In that case, unless some course be taken to protect the interest of the remainderman, the tenant for life may enjoy the estate during his whole life without bearing any greater charge than the interest on the debt created by the renewal, and he may leave no assets to pay his proportion of the principal money. That inconvenience may perhaps be avoided by requiring the tenant for life to give

(a) 5 Hare, 440.